

Mool Chand Kushwaha v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 20 July 2011 · WRIT - C No. 20938 of 2011 · **Writ petition dismissed for default.**

HEADNOTE

A consumer's writ challenging a theft-assessment Recovery Certificate as issued without complying with the U.P. Electricity Supply Code, 2005 is dismissed for default when none appears for the petitioner on the revised list. An earlier conditional stay of recovery is overtaken by the dismissal.

FACTUAL SUMMARY

Mool Chand Kushwaha challenged a Recovery Certificate dated 25 November 2009 sent by the distribution licensee to the Collector, Jhansi, seeking Rs 28,185 plus notice charges for alleged theft of electricity found on a check of his premises on 29 November 2008. He alleged non-compliance with mandatory requirements of the U.P. Electricity Supply Code, 2005. On 28 April 2011 recovery was stayed till the next date if he deposited Rs 15,000 within four weeks without prejudice. On 20 July 2011 none appeared for him.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for default

HOLDING

The writ petition is dismissed for default, no one being present for the petitioner when the list was revised. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 25.11.2009 FOR THE ALLEGED THEFT ASSESSMENT WAS ISSUED WITHOUT COMPLYING WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Dismissed for default; the Supply Code challenge and the theft assessment were not examined on merits. ¶ 1